MERROWFIELD DIGITAL

Reporting a Significant Incident

Document Procedure 02 | Rev 3 | Effective 2 February 2026 | Owner: Office of the Data Protection Officer | Review cycle: 12 months

1. Purpose

This procedure sets out how Merrowfield Digital reports significant incidents affecting its services to the national CSIRT. The deadlines in section 3 are taken from this document and from no other.

An incident can fall under more than one reporting procedure. When it does, each applicable procedure is followed in full, each deadline is counted from that procedure's own start, and the earliest deadline governs the work (Plan 01, section 8).

2. When this procedure applies

This procedure applies when an incident is significant. An incident is significant when any one of the following holds:

- the service outage lasted more than 60 minutes
- more than 100,000 (one lakh) customers were affected across the incident's campaign
- the direct financial loss was more than €500,000

Customers affected across the campaign means the customers affected by every incident that shares the incident's campaign reference, added together. An incident with no campaign - campaign reference Not linked - is judged on its own customers. An incident can therefore be significant only because of its campaign, when no incident in the campaign would be significant alone.

Personal data need not be involved. An outage with no personal data in it can still be significant.

3. Deadlines

The deadlines under this procedure are as follows.

The early warning is due within 24 hours of awareness.

The incident notification is due within 72 hours of awareness.

The final report is due one month after the incident notification is filed.

Hours are counted continuously, through nights, weekends and public holidays. A deadline is met when the report has been submitted, not when it has been drafted.

4. Where the clock starts

The clock under this procedure starts at awareness: the moment an analyst confirms that the incident is real, recorded on the incident as confirmed_at (Plan 01, section 4).

Until an incident is confirmed, no deadline under this procedure is running. A first alert that is still being triaged is not awareness.

The final report is the one deadline that cannot be known when the incident is assessed: it runs from the moment the incident notification is actually filed, and it is set when the filing is recorded.

5. What the report contains

The early warning states whether the incident is suspected of being caused by unlawful or malicious acts and whether it could have an impact across borders.

The incident notification updates the early warning and gives an initial assessment of the incident - its severity and impact - and any indicators of compromise.

The final report gives a detailed description of the incident, the type of threat or root cause that likely triggered it, the measures applied and ongoing, and any impact across borders.

6. Reporting in phases

If the facts a complete report needs are not established by the deadline, an initial report is submitted on time with what is known, and completed as the facts are established. A complete report submitted late is a late report.

The submission is prepared to be sent no later than 30 minutes before the deadline, the filing reserve set in Plan 01.

7. Customers

This procedure places no duty to tell customers. Whether customers are told is decided under Procedure 01 and Policy 01.

8. Records

Every incident assessed under this procedure is documented - the facts, the decision and the reasons - whether or not a report was submitted. A decision not to report is recorded with its reason, and the record is kept for inspection by the national CSIRT.

9. The rule this procedure implements

This procedure is modelled on Article 23 of the NIS2 Directive, which requires an early warning within 24 hours of becoming aware of a significant incident, an incident notification within 72 hours, and a final report not later than one month after the incident notification was submitted; an intermediate report may be requested in between.

For online marketplaces, Commission Implementing Regulation (EU) 2024/2690 sets the criteria for when an incident is significant, among them a direct financial loss above €500,000 or 5% of annual turnover, whichever is lower. Its criteria for marketplaces are broader than the thresholds in section 2 - a suspected malicious compromise of marketplace data, for example - and counsel applies them case by case.

This procedure is Merrowfield Digital's working instruction. It is not legal advice, and where it and the law differ, the law prevails.